

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF MĂTĂSARU AND SAVIȚCHI v. THE REPUBLIC OF MOLDOVA

(Application no. 43038/13)

JUDGMENT

STRASBOURG

10 July 2018

This judgment is final but it may be subject to editorial revision.



In the case of Mătăsaru and Savițchi v. the Republic of Moldova,

The European Court of Human Rights (Second Section), sitting as a Committee composed of:

Paul Lemmens, *President,*
Valeriu Griţco,
Stéphanie Mourou-Vikström, *judges,*
and Hasan Bakırcı, *Deputy Section Registrar,*

Having deliberated in private on 19 June 2018,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in an application (no. 43038/13) against the Republic of Moldova lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") by two Moldovan nationals, Mr Anatol Mătăsaru and Ms Djulieta Savițchi ("the applicants"), on 10 June 2013.

2. The applicants were represented by Mr V. Gribincea, a lawyer practising in Chișinău. The Moldovan Government ("the Government") were represented initially by their Agent *ad-interim* at the time Ms R. Revencu and later by their Agent O. Rotari.

3. The applicants alleged, in particular, a breach of their rights guaranteed by Article 5 § 1 and Article 11 of the Convention.

4. On 30 March 2017 the application was communicated to the Government.

THE FACTS

I. THE CIRCUMSTANCES OF THE CASE

5. The applicants, who are husband and wife, were born in 1970 and live in Chișinău.

6. On 29 January 2008 the applicants were involved in a street protest as a result of which they were arrested and detained for six hours and forty-five minutes. On 18 December 2008 the first applicant was again involved in a street protest, as a result of which he was arrested and detained for approximately four hours and a half. Later both applicants were acquitted and the actions of the police were found to be unlawful. The facts concerning those protests were described in detail in *Mătăsaru and Savițchi v. Moldova*, no. 38281/08, §§ 6-58, 2 November 2010.

7. On 29 January 2009 the first applicant organised again a street protest and was arrested again and detained for some six hours. Later the applicant was acquitted and the actions of the police were found to be unlawful.

8. On 2 November 2010 the Court adopted a judgment in the case of *Mătăsaru and Saviţchi* (cited above), in which it declared inadmissible the applicants' complaints concerning the alleged breaches of their rights guaranteed by Articles 5 and 11 of the Convention on the ground of their failure to exhaust domestic remedies (see *Mătăsaru and Saviţchi* (cited above, § 75).

9. After that, the applicants brought a civil action under Law 1545 (on compensation for damage caused by illegal acts of the criminal investigation bodies, the prosecution authorities or the courts) seeking compensation in respect of the breach of their rights guaranteed by Articles 5 and 11 of the Convention in regard to all three street protests of 2008 and 2009.

10. By a final judgment of 6 February 2013 the Supreme Court of Justice acknowledged the breach of the applicnts' rights guaranteed by Articles 5 and 11 of the Convention and awarded them the equivalent of 900 and 270 euros (EUR), respectively.

THE LAW

I. ALLEGED VIOLATION OF ARTICLES 5 § 1 AND 11 OF THE CONVENTION

11. The applicants alleged that their right to liberty guaranteed by Article 5 § 1 of the Convention had been breached because they had been detained without any legal grounds. The relevant parts of Article 5 read as follows:

> "1. Everyone has the right to liberty and security of person. No one shall be deprived of his liberty save in the following cases and in accordance with a procedure prescribed by law:
>
> ...
>
> (c) the lawful arrest or detention of a person effected for the purpose of bringing him before the competent legal authority on reasonable suspicion of having committed an offence or when it is reasonably considered necessary to prevent his committing an offence or fleeing after having done so;"

12. The applicants also complained that their arrest and detention had violated their right to freedom of peaceful assembly as guaranteed by Article 11 of the Convention, which provides:

> "1. Everyone has the right to freedom of peaceful assembly and to freedom of association with others, including the right to form and to join trade unions for the protection of his interests.

2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others. This Article shall not prevent the imposition of lawful restrictions on the exercise of these rights by members of the armed forces, of the police or of the administration of the State."

A. Admissibility

13. The Government submitted that the applicants had lost their victim status as a result of being compensated in the domestic civil proceedings. The applicants disagreed and argued that the amounts of compensation awarded to them by the domestic courts had been too small.

14. The Court reiterates that a decision or measure favourable to an applicant is not in principle sufficient to deprive him or her of victim status unless the national authorities have acknowledged, either expressly or in substance, and then afforded redress for the breach of the Convention (see *Amuur v. France*, 25 June 1996, § 36, *Reports of Judgments and Decisions* 1996-III).

15. In the instant case it is true that the Supreme Court of Justice held that there had been a violation of the applicants' rights guaranteed by Articles 5 and 11 of the Convention and that it awarded them compensation. That said, the Court finds that the question of the applicants' victim status as regards redress for the violation of their rights is inextricably linked to the merits of the complaints. Therefore, it considers that both questions should be joined and examined together.

16. The Court further notes that the complaints are not manifestly ill-founded within the meaning of Article 35 § 3 of the Convention. No other ground for declaring them inadmissible has been established. They must therefore be declared admissible.

B. Merits

17. The applicants argued that the compensation awarded by the Supreme Court of Justice in respect of the breaches of Articles 5 and 11 of the Convention had not been adequate and proportionate to the severity of the breaches of their rights. In support of this contention the applicants cited cases in which the Court had found breaches of Articles 5 and 11 of the Convention and the awards had been considerably higher than that made by the Supreme Court of Justice in their case. In their view, as a result of the insufficient amount of compensation awarded by the Supreme Court of Justice, they still had victim status under Articles 5 § 1 and 11 of the Convention.

18. The Government contested the applicants' submissions and argued that they lost their victim status.

19. There is no doubt and it is undisputed among the parties that the applicants suffered a breach of their rights under Articles 5 § 1 and 11 of the Convention. In this respect the Court sees no reason to depart from the conclusion of the national courts, which acknowledged the violation of these Articles. The Court shares this opinion and does not consider it necessary to re-examine the merits of this complaint. The Court also notes that the domestic courts awarded the applicants compensation for non-pecuniary damage. It thus considers that the principal issue is whether the award made was proportionate to the damage the applicants sustained. It recalls in this latter respect that the level of compensation must not be unreasonable in comparison with the awards made by the Court in similar cases (see *Burdov v. Russia (no. 2)*, no. 33509/04, § 99, ECHR 2009). Where, as in the present case, the victim status and therefore, the existence of a violation, is linked with the monetary redress afforded at domestic level, the Court's assessment necessarily involves comparison between the actual award and the amount that the Court would award in similar cases (see, *mutatis mutandis*, *Scordino v. Italy (no. 1)* [GC], no. 36813/97, §§ 181 and 202, ECHR 2006-V, and *Holzinger v. Austria (no. 1),* no. 23459/94, § 21, ECHR 2001-I).

20. The Court notes that the Supreme Court awarded the applicants the equivalent of EUR 900 and EUR 270 respectively in respect of non-pecuniary damage. These amounts are considerably below the amounts awarded by the Court in cases in which it has found a violation of Articles 5 § 1 and 11 of the Convention (see, for example, *Brega and Others v. Moldova*, no. 61485/08, 24 January 2012, where the Court awarded one of the applicants EUR 10,000 in respect of four distinct instances of breach of Articles 5 and 11 in similar circumstances).

21. In the light of the foregoing, the Court considers that the applicants can still claim to be victims of a violation of Articles 5 § 1 and 11 of the Convention. It therefore dismisses the Government's objection.

22. It also finds that there has been a violation of Articles 5 § 1 and 11 of the Convention, which arises from the hindering of their peaceful demonstrations and unlawful detentions.

II. APPLICATION OF ARTICLE 41 OF THE CONVENTION

23. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

A. Damage

24. The applicants claimed 15,000 euros (EUR) and EUR 7,000 respectively in respect of non-pecuniary damage.

25. The Government considered those amounts to be excessive.

26. In the light of all the circumstances, the Court awards the applicants jointly EUR 8,000 in respect of non-pecuniary damage.

B. Costs and expenses

27. The applicants also claimed EUR 8,053 for the costs and expenses incurred before the domestic courts and the Court.

28. The Government considered that amount to be excessive.

29. Regard being had to the documents in its possession, the Court considers it reasonable to award the sum of EUR 4,000 for costs and expenses.

C. Default interest

30. The Court considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Joins to the merits* the Government's preliminary objection concerning the applicants' victim status, *rejects it* and *declares* the application admissible;

2. *Holds* that there has been a violation of Article 5 § 1 of the Convention;

3. *Holds* that there has been a violation of Article 11 of the Convention;

4. *Holds*
   (a) that the respondent State is to pay the applicants jointly, within three months the following amounts, to be converted into the currency of the respondent State at the rate applicable at the date of settlement:
      (i) EUR 8,000 (eight thousand euros), plus any tax that may be chargeable, in respect of non-pecuniary damage;
      (ii) EUR 4,000 (four thousand euros), plus any tax that may be chargeable to the applicants, in respect of costs and expenses;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points;

5. *Dismisses* the remainder of the applicants' claim for just satisfaction.

Done in English, and notified in writing on 10 July 2018, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Hasan Bakırcı	Paul Lemmens
Deputy Registrar	President